

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: June 10, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Gazca vs. Kia America, Inc.	TENTATIVE RULING: <u>Order to Show Cause re Change of Venue.</u> The Court set this order to show cause hearing regarding the proper venue and potential transfer of this action brought under the Song-Beverly Act. Plaintiffs, relying on <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, contends venue in Orange County is proper based on the general venue provisions set forth in Code of Civil Procedure sections 395.5. <u>Statement of Law</u> Pursuant to Code of Civil Procedure section 395(a), "the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." Additionally, "if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless

there is a special contract in writing to the contrary.” (Code Civ. Proc., §395(a).) Similarly, Section 395.5 provides that a corporation “may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.”

In *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1156, the court explained:

“Section 395, subdivision (b) provides that a consumer action “arising from an offer or provision of goods [or] services” is proper “where the buyer or lessee in fact signed the contract, where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the action.” However, the trial court failed to cite, and we have been unable to locate any authority making the venue provisions of section 395, subdivision (b) mandatory in Song-Beverly Act cases.

Because Code of Civil Procedure section 395, subdivision (b) is not mandatory, generally applicable venue rules apply. Code of Civil Procedure section 395.5 specifies where venue may be had in a case, such as this one, where a party to the action is a corporation: “A corporation may be sued in the county where a contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” A foreign corporation may obtain a county residence under Corporations Code section 2105, subdivision (a)(4), which allows it to designate its principal office within the state, thus granting a county of residence for venue purposes.

Here, FCA is a foreign corporation with its principal place of business in Newport Beach, California. Thus, pursuant to , venue was proper either in Fresno County, where the contract was made and the alleged breach occurred, or in Orange County, where FCA maintains its principal place of business in California.”

Plaintiffs argues that venue is proper in Orange County because Defendant has repair centers in Orange County and because Defendant’s principal place of business is Orange County. However, under the facts of this case, as currently set forth in the pleadings, and under *Tidrick*, these arguments must fail.

First, there is nothing in *Tidrick* that indicates venue in Song-Beverly Act cases is proper in any county where Defendant maintains a repair center. Furthermore, the Complaint in this action does not allege that Plaintiff attempted to have the vehicle repaired at any of Defendant's repair centers located in Orange County. In fact, the only repair facility mentioned in the Complaint is "Valley Hi Kia in Victorville, California." (ROA #2)

Second, the Complaint does not allege, and Plaintiff has not established, that Orange County is Defendant's principal place of business. In *Tidrick*, the court took judicial notice of Statements of Information filed by Defendant FCA showing the location of its principal place of business in Orange County. (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, fn.3) No such request for judicial notice has been filed in this matter, and the court has not been presented with any Statements of Information filed by Defendant.

Order to Transfer Venue

The court, having considered the above legal authority, the operative Complaint, and any declarations filed in response to the setting of this hearing, finds that venue is not proper in Orange County.

The court orders this case transferred to the county where the contract was made or is to be performed, or where the obligation or liability arose, or the breach occurred; or the county where the principal place of business of such corporation is situated. From the Complaint, it appears that county is San Bernardino County. Thus, this matter is ordered transferred to the San Bernardino County Superior Court, Civil Division of the Victorville District, 14455 Civic Drive, Victorville, CA 92392.

Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer.

The court sets a status conference regarding the transfer of this action for Tuesday, November 10, 2026, at 9:00 a.m., in Department N16. If the transfer is completed prior to that date, no appearances are

		necessary, and the status conference will go off calendar. If the transfer has not been completed, however, then all counsel are ordered to appear at the status conference, at which time the court may dismiss the action without prejudice pursuant to CCP § 396a(a). Plaintiff to give notice.
2	Williams vs. General Motors, LLC	TENTATIVE RULING: <u>Order to Show Cause re Change of Venue.</u> The Court set this order to show cause hearing regarding the proper venue and potential transfer of this action brought under the Song-Beverly Act. As part of the Court’s OSC Order, the Court invited counsel to file a written response that included the sales/lease agreement for the vehicle at issue. Neither plaintiff nor defendant filed anything in response to the OSC. <u>Statement of Law</u> Pursuant to Code of Civil Procedure section 395(a), “the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” Additionally, “if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.” (Code Civ. Proc., §395(a).) Similarly, Section 395.5 provides that a corporation “may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” In <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1156, the court explained: “Section 395, subdivision (b) provides that a consumer action “arising from an offer or provision of goods [or] services” is proper “where the buyer or lessee in fact signed the contract, where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the

action.” However, the trial court failed to cite, and we have been unable to locate any authority making the venue provisions of section 395, subdivision (b) mandatory in Song-Beverly Act cases.

Because Code of Civil Procedure section 395, subdivision (b) is not mandatory, generally applicable venue rules apply. Code of Civil Procedure section 395.5 specifies where venue may be had in a case, such as this one, where a party to the action is a corporation: “A corporation may be sued in the county where a contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” A foreign corporation may obtain a county residence under Corporations Code section 2105, subdivision (a)(4), which allows it to designate its principal office within the state, thus granting a county of residence for venue purposes.

Here, FCA is a foreign corporation with its principal place of business in Newport Beach, California. Thus, pursuant to , venue was proper either in Fresno County, where the contract was made and the alleged breach occurred, or in Orange County, where FCA maintains its principal place of business in California.”

Order to Transfer Venue

The court, having considered the above legal authority, the operative Complaint, and any declarations filed in response to the setting of this hearing, finds that venue is not proper in Orange County. Plaintiff has not established that Orange County is where the contract was made or is to be performed, or where the obligation or liability arose, or the breach occurred; or the county where the principal place of business of Defendant is situated.

The court orders this case transferred to the county where the contract was made or is to be performed, or where the obligation or liability arose, or the breach occurred; or the county where the principal place of business of such corporation is situated. That county is not evident from the Complaint. Plaintiff is ordered to notify the court clerk of the proper county for transfer of venue within 7 days of this ruling.

Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the

		court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. The court sets a status conference regarding the transfer of this action for Tuesday, November 10, 2026, at 9:00 a.m., in Department N16. If the transfer is completed prior to that date, no appearances are necessary, and the status conference will go off calendar. If the transfer has not been completed, however, then all counsel are ordered to appear at the status conference, at which time the court may dismiss the action without prejudice pursuant to CCP § 396a(a). Plaintiff to give notice.
3	Alamour vs. Regents of the University of California	CONTINUED TO 8/19/26
4	Choe vs. City Storage Systems LLC	TENTATIVE RULING: Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) demurrer to the first amended complaint by Plaintiffs June Choe and Poke Pub Corp. is VACATED and taken OFF-CALENDAR. Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) motion to strike portions of the first amended complaint by Plaintiffs June Choe and Poke Pub Corp. is VACATED and taken OFF-CALENDAR. Pursuant to the Court of Appeal’s remittitur, filed on June 4, 2026, and opinion, filed April 2, 2026, the petition by Defendants City Storage Systems, LLC (“City Storage”), Restaurant Technology Solutions, LLC (“Restaurant Tech”), 1750 Newport Blvd CM, LLC (“Newport”) to compel arbitration is GRANTED. All parties to this action are ordered to arbitration. This action is stayed pending the resolution of arbitration. Given the Court of Appeal’s remittitur and opinion, therefore, Defendants’ pending demurrer and motion to strike are moot. An ADR Review Hearing is set for December 15, 2026, at 9:00 a.m. in this Department.

		Moving Defendants to give notice.
5	Hoang vs. Toyota Motor Sales, U.S.A., Inc.	TENTATIVE RULING: <u>Motion 1. Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc., (“TMS”) demurs to the sixth cause of action in the Complaint of Plaintiff Thach D. Hoang. For the following reasons, the demurrer is OVERRULED. <u>Request for Judicial Notice</u> The court DENIES as unnecessary Defendant TMS’s request for judicial notice. (<i>See Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6].) <u>Timeliness</u> While a defendant generally has 30 days after service of a complaint within which to demur to the complaint or to file a motion to strike the complaint, an untimely challenge to the complaint may be considered by the court in its discretion. (<i>See Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 750.) The court exercises its discretion to consider Defendant TMS’s untimely demurrer, given the unique procedural history in this case. <u>Standard on Demurrers</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).)

Sixth Cause of Action (Fraudulent Concealment)

The Complaint alleges Defendant TMS failed to disclose the subject vehicle and its lithium-ion battery were defective and susceptible to sudden and premature failure (Compl. ¶¶ 63, 65), which TMS learned of through sources not available to consumers, including but not limited to pre-production and post-production testing data, early consumer complaints about the battery defect made directly to TMS and its network of dealers, aggregate warranty data compiled from TMS's network of dealers, testing conducted by TMS in response to these complaints, and warranty repair and part replacement data. (FAC ¶ 66.)

The elements of a cause of action for fraudulent concealment are: (i) concealment or suppression of a material fact; (ii) by a defendant with a duty to disclose the fact to the plaintiff; (iii) defendant's intent to defraud plaintiff by intentionally concealing or suppressing the fact; (iv) plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (v) as a result, the plaintiff sustained damage. (*Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162; *see also* Civ. Code, § 1573.)

Requisite Specificity

Defendant TMS contends the Complaint relies on only boilerplate conclusions rather than specific facts.

For pleading purposes, the facts that constitute the fraud must be alleged fully, factually, and specifically. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1331; *see also*, *Dhital*, 84 Cal.App.5th at 843-844 ["Fraud, including concealment, must be pleaded with specificity"].) This particularity requirement generally necessitates the pleading of facts that show how, when, where, to whom and by what means the representation was tendered; and pleading specifically the detriment proximately caused by the

defendant's conduct. (*Service of Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1818; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

Notably, an exception to the general rule exists when it appears the facts lie more within the defendant's knowledge than the plaintiff's, i.e., less specificity is required where "defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216, *superseded by statute, on other grounds; see also Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4th 394, 403-404 [finding omission of names of mortgage servicer employees and their authority to speak not fatal to fraud claim where defendants had more knowledge of the facts than did plaintiffs]; *Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif.* (2016) 245 Cal.App.4th 821, 840 [holding complaint need not specify information uniquely within defendants' knowledge, such as who prepared documents in question].)

Here, the Complaint alleges Defendant TMS concealed specific material facts, including that the battery system had one or more defects and that as a result of the defective battery, vehicles experienced overheating, loss of propulsion power while driving, sudden and premature battery failure, failure to start, reduced range, thermal runaway, and/or spontaneous combustion and/or fire. (FAC ¶ 65.) The Complaint need not allege the identity of the specific facts establishing pre-sale knowledge or concealment conduct, as Defendant TMS is in a better position to know that information.

Duty to Disclose

Defendant TMS contends the Complaint does not allege facts supporting a duty by TMS to disclose because the Complaint does not allege sufficiently specific facts plausibly establishing that TMS had pre-sale knowledge of the alleged battery defect.

"A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent." (*SCC Acquisitions, Inc. v. Central Pac. Bank* (2012) 207 Cal.App.4th 859, 860.) Under California law, "[t]here are "four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of

	material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (<i>LiMandri v. Judkins</i> (1997) 52 Cal.App.4th 326, 336.) The court in <i>Dhital v. Nissan North America</i> considered this principle in the context of consumers purchasing a manufacturer’s vehicle and held the plaintiff consumer need not allege a transaction with the manufacturer to allege a duty to disclose. Specifically, the <i>Dhital</i> court concluded allegations that the plaintiffs bought a vehicle from a Nissan dealership that was backed by an express warranty from Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers, was sufficient at the demurrer stage to support a duty to disclose. (<i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844, <i>petition for review granted</i> (2023) 523 P.3d 392 and dismissed and remanded, 559 P.3d 1083, 2024 WL5162583 (Dec. 18, 2024).)¹ Moreover, where a manufacturer partners with the seller by offering an express warranty as part of the sales package, that manufacturer steps into the role of a retailer. (<i>See e.g., Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337, 343 [manufacturer stepped into the role of the distributor and retail seller by issuing an express warranty in sale of used vehicle].) The Complaint here alleges sufficient facts from which the court may reasonably construe the warranty contract was executed as part of the sales package for the purchase of a new vehicle manufactured by Defendant TMS. (<i>See</i> Compl. ¶ 7, Ex. A.) The Complaint alleges facts supporting Defendant TMS’s exclusive knowledge of the alleged Battery Defect, including that Defendant TMS was aware that the vehicle was equipped with a defective battery and actively concealed these material defects from the public. (Compl. ¶¶ 63-72.) Defendant was in a superior position from various internal sources to know of the facts surrounding the material defects. (Compl. ¶ 69(b).) These allegations are sufficient to establish a duty to disclose.
--	--

¹ Neither the order granting review nor dismissing the review affects the publication status of the *Dhital* opinion. (*See* Cal. Rules Ct., Rule 8.1115(e)(2) [providing that unless otherwise ordered by the Supreme Court, a published opinion by the appellate court on review by the Supreme Court remains citable and has binding or precedential effect, except to the extent it is inconsistent with the decision of the Supreme Court or disapproved by that court], Rule 8.528(b)(3) [providing a Cal. Supreme Court order “dismissing review does not affect the publication status of the Court of Appeal opinion unless the Supreme Court orders otherwise”].)

Reliance and Damages

Defendant TMS does not challenge the sufficiency of pleading the reliance and damages, and the court finds the Complaint alleges sufficient facts to support these elements. (*See, e.g.*, Compl. ¶¶ 72, 74.)

In sum, the court finds the allegations sufficient to support each element of the fraudulent concealment claim.

No later than 10 days after service of the notice of ruling, Defendant TMS shall file and serve an answer or other response to the Complaint. (Cal. Rules Ct., Rule 3.1320(g).)

Motion 2. Motion to Strike Portions of Complaint

Defendant Toyota Motor Sales, U.S.A., Inc., (“TMS”) moves to strike the prayer for punitive damages in the Complaint of Plaintiff Thach D. Hoang. For the following reasons, the motion is DENIED.

Request for Judicial Notice

The court DENIES as unnecessary Defendant TMS’s request for judicial notice. (*See Zucchet v. Galardi* (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [citing *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6].)

Timeliness

The court exercises its discretion to consider the late-filed motion to strike, given the unique procedural history in this action.

Standard on Motion to Strike

The grounds for a motion to strike must appear on the face of the pleading or matters from which the court may judicially notice. (Code Civ. Proc., § 437.) Pursuant to Code of Civil Procedure Section 436 the court may, upon a motion made or at any time in its discretion, strike out “any irrelevant, false, or improper matter inserted in any pleading.” A motion to strike, however, is not “a procedural ‘line item veto’ for the civil defendant.” (*PH II, Inc. v. Superior Ct.* (1995) 33 Cal.App.4th 1680, 1683.) In a motion to strike, the court reads the complaint as a whole, considering all parts in their context, and must assume the truth of all well-pleaded allegations. (*Courtesy Ambulance Serv. v. Superior Court* (1992) 8 Cal.App.4th 1504, 1519.)

		<u>Punitive Damages</u> Defendant TMS contends that the Complaint fails to allege facts supporting a claim of oppression, fraud, or malice, and Plaintiff does not allege that any officer, director, or managing agent of TMS committed, authorized, or ratified any such conduct. To plead a claim to recover punitive damages, a plaintiff must plead and show one of the following bases for imposition of exemplary damages, i.e. malice, oppression, or fraud. (Civ. Code, § 3294(a), (c).) To plead a claim to recover punitive damages against an employer based on the acts of an employee, a plaintiff must plead facts showing the employer “had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294(b).) At the pleading stage, the complaint may rely on ultimate facts of fraud, oppression or malice. (<i>Spinks v. Equity Residential Briarwood Apartments</i> (2009) 171 Cal.App.4th 1004, 1055.) Here, the Complaint alleges sufficient facts to support the punitive damages claim, including fraudulent concealment and actions on the part of an officer, director, or managing agent of Defendant TMS. (See FAC ¶¶ 61-73.) No later than 10 days after service of the notice of ruling, Defendant TMS shall file and serve an answer or other response to the Complaint. Plaintiff to give notice.
6	Gencal Newport Lido, LLC vs. Restor Physical Therapy, Inc.	OFF CALENDAR

7	Wells Fargo Bank, N.A. vs. Hellman	TENTATIVE RULING: <u>Motion to Vacate</u> Plaintiff Wells Fargo Bank, N.A., moves to vacate the dismissal and enter judgment against Defendant Cheyenne Hellman pursuant to the parties' stipulation. For the following reasons, the motion is DENIED without prejudice. Plaintiff served the motion on Defendant at 1010E Yorba Linda Blvd, Apt 1083, Placentia, CA 92870. According to the most recent document filed by Defendant, a Case Management Statement filed on June 23, 2022, Defendant is represented by Daniel S. March in Tustin. No substitution of attorney has been filed since. According to the Stipulation for Entry of Judgment executed by Defendant, "All notices, correspondence or communications of any type from Plaintiff to Defendant shall be directed to Defendant, unless Plaintiff is otherwise directed by Defendant, or someone acting on Defendant's behalf. Furthermore, notices maybe sent by fax or email." (Mulhorn Dec., Ex. 1 at ¶ 14.) But this motion is not a "notice, correspondence, or communication." The court notes that Plaintiff has previously filed a substantially similar motion in 2024, in which the court already addressed these service defects. Despite the court previously continuing the hearing on the prior motion to give Plaintiff an opportunity to cure the service defect, Plaintiff failed to do so, which led to the denial of Plaintiff's previous motion. Yet, two years later, Plaintiff files the same motion, containing the same service defects without explanation. To the extent that Plaintiff intends on filing any further motions to vacate under § 664.6, service must be made on both Defendant and Defendant's counsel. Plaintiff to give notice.
8	Amaro Lebron vs. Mazda Motor Corporation	OFF CALENDAR
9	Bolanos vs. General Motors, LLC	TENTATIVE RULING: For the reasons set forth below, Defendant General Motors, LLC's motion for summary judgment is DENIED, without prejudice.

Statement of Law

“Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (*Aguilar*, *supra*, 25 Cal.4th at 855, italics original.)

In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar*, *supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, quoting *Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) “If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.”

(*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, quoting *Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

Here, Defendant moves for summary judgment on the single cause of action under the Magnuson-Moss Warranty Act in the “First Amended Complaint.”

No First Amended Complaint on File

“A summary judgment motion is directed to the issues framed by the pleadings”. (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as “the outer measure of materiality” in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Here, Defendant contends that it is entitled to judgment because Plaintiff cannot maintain a Magnuson-Moss Warranty Act (MMWA) without a viable state law claim. Defendant moves for summary judgment “on the single cause of action in Plaintiff’s First Amended Complaint. . . .” (Motion, 1:27-28).

Defendant contends that Plaintiff sued Defendant GM on October 17, 2024, alleging two counts for violation of the Song Beverly Act, and

then filed his First Amended Complaint on March 13, 2025, asserting only a single count for violation of the Magnuson-Moss Warranty Act.

However, there is no First Amended Complaint on file.

On March 13, 2025, Plaintiff filed a motion for leave to file First Amended Complaint. (See ROA 22). Plaintiff's counsel included a declaration, wherein he attached a copy of "[t]he redline version of the Proposed First Amended Complaint." (Decl. of Neal F. Morrow, ¶ 8, Ex. 1). Exhibit 1 is a redlined version of the proposed FAC containing proposed deletions and the proposed additions. No clean copy was attached.

On 10/29/25, this court granted the motion, and held as follows: "Plaintiff is ordered to file and serve a clean copy of the First Amended Complaint within 10 days." (See 10/29/25 Order [ROA 54]). The court stated again, in the Order: "For these reasons, the court grant's the motion and orders Plaintiff to file and serve a 'clean' copy of the First Amended Complaint." (*Id.*).

On December 2, 2025, the court held a case management conference with both parties in attendance. The court continued the CMC to 4/28/26, but also stated the following: "Court notes First Amended Complaint has not been filed in this matter." (See 12/2/25 Order [ROA 71]). Notably, this was the same day that Defendant filed the instant motion. Accordingly, the parties were alerted to the fact that no FAC had been on file as of 12/2/25.

To date, no FAC has been filed. Nor has a response to the FAC been filed.

As previously stated, a summary judgment motion "is directed to the issues framed by the pleadings". (*Canales, supra*, 23 Cal.App.5th at 1268). Defendant's motion for summary judgment is directed to a non-existent cause of action under the MMWA in the "FAC" that was never filed.

Accordingly, the motion is denied, but without prejudice as to refile in the event Plaintiff files a copy of his First Amended Complaint.

Defendant to give notice.

10	Dinh vs. The M General Construction Company	TENTATIVE RULING: <u>Motion 1. Motion to Be Relieved as Counsel of Record</u> Counsel Robert A. Von Esch moves to be relieved as counsel of record for Defendant Miguel Mendez (“Client”). For the following reasons, the motion is CONTINUED to August 19, 2026, at 9:00 a.m. in this Department. On 04/29/2026, this court continued the motion for Moving Counsel to file and serve, among other things, proof of service establishing service by non-electronic means of <u>all</u> moving papers on Client. The court record shows no such proof of service. The proof of service shows moving counsel served only the amended declaration on the client by mail at the client’s last known address. The remainder of the motion papers were served by electronic means. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve proof of service establishing service by non-electronic means of all moving papers on Client. (Code Civ. Proc., § 1010.6(c)(3); Rule 2.251(b)(1)(B)). Client Miguel Mendez may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client. <u>Motion 2. Motion to Be Relieved as Counsel of Record</u> Counsel Robert A. Von Esch moves to be relieved as counsel of record for Defendant The M General Construction (“Client”). For the following reasons, the motion is CONTINUED to August 19, 2026, at 9:00 a.m. in this Department. On 04/29/2026, this court continued the motion for Moving Counsel to file and serve, among other things, proof of service establishing service by non-electronic means of all moving papers on Client, and an amended declaration showing reasonable efforts to locate the corporate client’s current mailing information, including but not limited to investigating the corporate registration of Client. The court record shows no such proof of service. The proof of service shows moving counsel served only the amended declaration on the
----	---	--

		client by mail at the client's last known address. The remainder of the motion papers were served by electronic means. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve proof of service establishing service by non-electronic means of all moving papers on Client (Code Civ. Proc., § 1010.6(c)(3); Rule 2.251(b)(1)(B)); and an amended counsel declaration showing reasonable efforts to locate the corporate client's current mailing address information. Client The M General Construction may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client.
11	Haus of Design HOD, LLC vs. TLB, LLC	TENTATIVE RULING: For the reasons set forth below, the application for writ of possession by Plaintiff Haus of Design HOD, LLC is DENIED without prejudice. Plaintiff seeks a writ of possession from Defendant TLB, LLC of furniture, decorative items, lighting, rugs, artwork, display equipment, and related accessories/personal property under two Staging Services Agreements between the parties. The proofs of service on the application for writ of possession, however, show that Plaintiff served the moving papers for the application for writ of possession on Defendant by electronic mail to Ashok Desai at alan@desaicompany.com and admin@desaicompany.com. (ROA # 22). Code of Civil Procedure § 512.030, however, provides: (a) Prior to the hearing required by subdivision (a) of Section 512.020, the defendant shall be served with all of the following: (1) A copy of the summons and complaint. (2) A Notice of Application and Hearing. (3) A copy of the application and any affidavit in support thereof. (b) If the defendant has not appeared in the action, and a writ, notice, order, or other paper is required to be personally served on the defendant under this title, service shall be made in the

		same manner as a summons is served under Chapter 4 (commencing with Section 413.10) of Title 5. Here, Defendant has not appeared in the action. Accordingly, Defendant must be served with the moving papers in the same manner as a summons. Serving by electronic means is not an authorized manner of serving a summons. For this reason, the motion is DENIED without prejudice. Plaintiff to give notice.
12	Young vs. Gunlei Corporation	TENTATIVE RULING: <u>Motion to Strike</u> Plaintiffs and Cross-Defendants William and Jennifer Young move to strike the Cross-Complaint filed by Cross-Complainants Gunlei Corporation and Egreen Transport Corporation. For the following reasons, the motion is DENIED. Plaintiffs’ request for judicial notice is GRANTED. Code Civ. Proc. § 436 provides as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.) A corporation that has been suspended or forfeited for failure to pay its taxes lacks capacity during the period of suspension or forfeiture to prosecute or defend any lawsuit. (<i>See</i>, Rev. & Tax. Code § 23301; Corp. Code § 2205; <i>Casiopea Bovet, LLC v. Chiang</i> (2017) 12 Cal.App.5th 656, 662, citation omitted [“A corporation that has had its powers suspended ‘lacks the legal capacity to prosecute or defend a civil action during its suspension.’ . . . Nor, during the period of

	suspension, may the corporation prosecute or defend an action, seek a writ of mandate, appeal from an adverse judgment, or renew a judgment obtained before suspension.”[.]”.) The purpose of section 23301 “is to ‘prohibit the delinquent corporation from enjoying the ordinary privileges of a going concern,’ and to pressure it to pay its taxes.” (<i>Id.</i> [citations omitted].) “A suspended corporation can regain its corporate powers by filing all required tax returns, paying the necessary taxes, penalties or fees due, and applying to the Franchise Tax Board for a certificate of revivor. [.] This reinstatement or revivor generally is ‘without prejudice to any action, defense or right which has accrued by reason of the original suspension or forfeiture[.]’” (<i>Center for Self-Improvement & Community Development v. Lennar Corp.</i> (2009) 173 Cal.App.4th 1543, 1553, citing Rev. & Tax. Code § 23305.) Further, “a plaintiff may not take the defendant’s default by virtue of the defendant’s inability to defend due to suspension of corporate powers, where the defendant consummated revival proceedings upon the grant of a continuance.” (<i>Id.</i>) Pursuant to California Revenue and Taxation Code section 23301, “the corporate powers, rights and privileges of a domestic taxpayer may be suspended” if it does not pay its taxes. “The suspension of the corporate powers, rights, and privileges means a suspended corporation cannot sue or defend a lawsuit while its taxers remain unpaid. [Citation.] Once a suspended corporation pays its taxes and obtains a certificate of revivor, however, the corporation may be allowed to carry on the litigation. [Citation.] Its revivor will validate most otherwise invalid prior proceedings in the case. [Citation.]” (<i>Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.</i> (2006) 136 Cal.App.4th 212, 217-218.) Plaintiff seeks to strike the Cross-Complaint filed by Defendant Gunlei Corporation on the basis that Gunlei is forfeited by the Franchise Tax Board and thus lacks legal capacity to maintain its Cross-Complaint. Gunlei evidently obtained a Certificate of Revivor from the Franchise Tax Board in May, 2026. (See ROA 836 and Secretary of State’s online business search tool.) Therefore, the motion to strike is DENIED. Plaintiffs and Cross-Defendants William and Jennifer Young shall give notice of this ruling.
--	---

13	Midland Credit Management, Inc. vs. Shapiro	TENTATIVE RULING: <u>Motion to Set Aside Default</u> For the reasons set forth below, Defendant Michael S. Shapiro’s motion to set aside the Default entered on April 15, 2026, and the Default Judgment entered on April 24, 2026, is GRANTED. The court ORDERS Defendant to file a responsive pleading to the Complaint on or before June 19, 2026. Code of Civil Procedure section 473, subdivision (d) provides the court may, on motion of either party after notice to the other party, set aside any void judgment or order. Inclusion of the word “may” in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment or order. (<i>Cruz v. Fagor America, Inc.</i> (2007) 146 Cal.App.4th 488, 495.) “Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citations.]” (<i>Hearn v. Howard</i> (2009) 177 Cal.App.4th 1193, 1200.) Defendant contends that the default and default judgment are void because he was not properly served with the Summons and Complaint. According to the Proof of Service, Defendant was personally served with the Summons and Complaint on February 7, 2026, by a registered California process server. (ROA 11) Defendant declares that he was never served with the Summons and Complaint and has never spoken with the process server who signed the Proof of Service. Defendant further declares that he had a dermatologist appointment after work hours and that, to the best of his knowledge, Defendant was not at home at the time the Proof of Service indicates he was served. (Shapiro Decl. ¶¶ 3-4.) Plaintiff did not file an opposition and, thus, failed to meet its burden to show effective service. The Court finds that the Default and Default Judgment are void and orders that they be set aside. Defendant to give notice.
14		
15		
16		
17		
18		

